

EVIDENCE GATHERING GUIDE

For: Maria Elena Rodriguez

Evidence is everything in eviction court. The right evidence can win your case. This guide tells you what to gather and how to organize it.

1. WRITTEN EVIDENCE — MOST IMPORTANT

- Your LEASE or rental agreement — bring the entire document.
- All RENT RECEIPTS, bank statements, canceled checks, money order stubs.
- All notices from the landlord — pay or quit notice, eviction notice, ANY letter.
- All text messages and emails with your landlord — print them out.
- Any repair requests you sent — texts, emails, certified letters, work orders.
- Any letters from code enforcement, health department, or housing inspectors.
- Your eviction summons and complaint — bring ALL pages.

2. PHOTOS & VIDEO

- Take photos of EVERY repair issue — broken appliances, leaks, mold, pests, damage.
- Date each photo. Use a newspaper in the photo to prove the date if needed.
- Take photos of the ENTIRE unit — show overall condition.
- If safe, take photos of the outside — building condition, trash, hazards.
- Video walkthrough: Narrate as you film. 'Today is [date]. This is the leaking ceiling...'

3. WITNESSES

- Neighbors who saw or heard problems — ask them to come to court or write a statement.
- Other tenants in your building facing similar issues — compare notes.
- Anyone who was present when your landlord said or did something relevant.
- Witness statement format: name, address, phone, date, what they saw/heard, signature.

4. ORGANIZATION — CRITICAL

- Put everything in chronological order — oldest first.
- Create a simple TIMELINE: Date → What happened → Evidence you have.
- Use a 3-ring binder or folder with tabs for each category.
- Make 3 copies of EVERYTHING — one for the judge, one for the landlord, one for you.
- Write a brief SUMMARY (1 page max) of your case — key dates and facts.

DO NOT bring original documents to court unless you have copies. The court keeps what you file — do NOT give away your only copy of anything.